

Code of Civil Procedure [sic] § 3294 and *Hassoldt v. Patrick Media Group, Inc.* (2000) 84 Cal.App.4th 153"), and (c) paragraph 5 of the Prayer of the Complaint ("For the Causes of Action for Intentional Infliction of Emotional Distress and Private Nuisance, punitive damages pursuant to *California Code of Civil Procedure [sic] § 3294*"). Those provisions of the Complaint shall be deemed properly asserted only against defendant Shontell Williams. The Court will **GRANT** Plaintiff **LEAVE TO AMEND** to attempt to allege facts to state a claim for punitive damages against the Company under Civil Code section 3294(b). The Court **DENIES** the motion to strike by defendant Shontell Williams as to those portions of the Complaint.

The Court **DENIES** the motion to strike by both defendants John Stewart Company and Shontell Williams directed to paragraph 53 and paragraph 6 of the Prayer of the Complaint.

11. 9:00 AM CASE NUMBER: C26-00564

**CASE NAME: CATERPILLAR FINANCIAL SERVICES CORPORATION, VS. CHRIS CHRYSSIKOS
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION AFTER HEARING RE: CHRIS ROY
CHRYSSIKOS**

FILED BY: CATERPILLAR FINANCIAL SERVICES CORPORATION,

TENTATIVE RULING:

The unopposed Application for Writ of Possession is **GRANTED**. Moving party to appear in connection with review and entry of order(s).

12. 9:00 AM CASE NUMBER: L25-02197

**CASE NAME: ONEMAIN FINANCIAL, LLC ONEMAIN FINANCIAL GROUP, LLC VS. HEISELL CENTENO
MURILLO**

HEARING IN RE: MOTION TO PAY IN INSTALLMENTS

FILED BY:

TENTATIVE RULING:

Defendant and judgment debtor Heisell Centeno Murillo ("Judgment Debtor") filed a motion to pay judgment in installments on May 4, 2026 (the "Motion to Pay Installments"). The Motion to Pay Installments was set for hearing on August 3, 2026. The motion is opposed.

Background

A default judgment was entered against Judgment Debtor on October 16, 2025, awarding \$10,981.92 (the "Judgment Amount") to plaintiff and judgment creditor OneMain Financial Group, LLC ("Judgment Creditor"). See Judgment filed October 16, 2025. On May 4, 2026, Judgment Debtor filed the Motion to Pay Installments, seeking to pay the Judgment Amount in \$250 monthly installments, payable on the 10th of each month. See Declaration as part of Motion to Pay Installments ("Murillo Declaration"), ¶13. No proof of service is attached to the Motion to Pay Installments or filed separately.

Judgment Creditor filed an opposition on July 21, 2026 (the "Opposition"). Judgment Creditor acknowledges receiving a copy of the Motion to Pay Installments on May 20, 2026. Opposition, p. 1.

Analysis

In a limited civil case where there is a money judgment, the judgment shall be paid immediately unless otherwise prescribed by the court. Code Civ. Proc. § 582.5. Upon motion by a party, the court may provide for payment through installments where there is good cause. *Id.* The moving party does not need to have appeared before the court prior to the entry of the judgment in order to seek an order for payment by installments. *Id.*

Here, the Murillo Declaration details Judgment Debtor's financial information. Based on this, Judgment Debtor has a monthly take-home pay of \$6,887.32. Murillo Declaration, ¶15 *et seq.* This leaves a monthly surplus of \$577.32 after expenses. See *id.* at ¶¶15-7. Judgment Debtor also states that he/she is financially supporting his/her mother who recently underwent surgery. *Id.* at ¶18 *et seq.*

In the Opposition, Judgment Creditor highlights several discrepancies in the Murillo Declaration. Most notably, the calculation of Judgment Debtor's take-home pay is erroneous. A total payroll deduction of \$4,807.12 is reported, however the actual sum of the individual payroll expenses is \$3,682.28. Opposition, p. 3; see Murillo Declaration, ¶15. This indicates a monthly take-home pay of \$8,012.16 as opposed to the \$6,887.32 set forth in the Murillo Declaration. *Id.* After expenses, this yields a monthly surplus of \$1,702.16. The Court's calculations match those of the Judgment Creditor in the Opposition. See Opposition, p. 3.

In light of the above, the Court, in its discretion and for good cause shown, GRANTS IN PART the Motion to Pay Installments. Judgment Debtor will be permitted to pay the Judgment Amount in monthly installments. However, considering the larger monthly surplus, the installments shall be in the amount of \$415, payable on the 10th of each month. The Court finds this amount just and reasonable given Judgment Debtor's financial circumstances. The first payment shall be due August 10, 2026.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Pay Installments is GRANTED IN PART. Judgment debtor shall pay the Judgment Amount in monthly installments of \$415, payable on the 10th of each month. The first payment shall be due August 10, 2026.
2. The Court will issue the order after hearing.

13. 9:00 AM CASE NUMBER: MSC20-00271
CASE NAME: MENASCO VS KILARR
***HEARING ON MOTION IN RE: ATTORNEYS FEES MOTION FILED TO/FOR**
FILED BY:
TENTATIVE RULING:

Parties to Appear.